

Non-Disclosure Agreement (NDA)

AfriNuts Export

This Non-Disclosure Agreement ("Agreement") is entered into as of _____, by and between:

Disclosing Party: *AfriNuts Export*, located in Odienné, Ivory Coast ("Disclosing Party"), and
Receiving Party: _____, located at _____
("Receiving Party").

1. Purpose

The Disclosing Party intends to disclose confidential and proprietary information to the Receiving Party to evaluate a potential investment opportunity in AfriNuts Export's business plan and operations (the "Purpose").

2. Definition of Confidential Information

Confidential Information" means any non-public, proprietary, or sensitive information disclosed by the Disclosing Party to the Receiving Party, whether written, oral, or electronic, including but not limited to:

- The AfriNuts Export Business Plan includes financial projections, strategies, and market analysis.
- Trade secrets, supplier networks, and operational processes.
- Plans for farming and processing center development.
- Any other information marked as "confidential" or reasonably understood to be confidential by its nature.

3. Exclusions from Confidential Information

Confidential Information does not include information that:

a. Was publicly known or available at the time of disclosure.
b. Becomes publicly known through no fault of the Receiving Party.
c. Is obtained by the Receiving Party from a third party with no breach of confidentiality obligations.
d. Is independently developed by the Receiving Party without referencing the Disclosing Party's Confidential Information.

4. Obligations of the Receiving Party

The Receiving Party agrees to:

a. Use the Confidential Information solely for the Purpose stated in this Agreement.
b. Maintain the confidentiality of the Confidential Information and not disclose it to any third party without prior written consent from the Disclosing Party.
c. Take all reasonable measures to protect the Confidential Information from unauthorized use or disclosure, at least as stringently as it protects its confidential information.

5. Permitted Disclosures

The Receiving Party may disclose Confidential Information only:

a. To employees, advisors, or agents who need to know such information for the Purpose and are bound by confidentiality obligations at least as strict as those in this Agreement.
b. If required by law or regulation, provided the Receiving Party promptly notifies the Disclosing Party to allow for protective measures.

6. Return or Destruction of Information

Upon the Disclosing Party's request, the Receiving Party shall immediately return or destroy all copies of the Confidential Information, including any notes, summaries, or materials derived from it.

7. Term and Survival

This Agreement shall remain in effect until 2030 from the date of disclosure. The Receiving Party's obligations regarding confidentiality will survive the termination of this Agreement.

8. Nonsolicitation of Employees

This Agreement does not grant the Receiving Party any rights, licenses, or ownership interests in the Disclosing Party's Confidential Information.

9. Governing Law

This Agreement shall be governed by and construed by the laws of the State of Texas, without regard to its conflicts of laws principles.

10. Entire Agreement

This Agreement constitutes the entire understanding between the parties regarding the Confidential Information and supersedes all prior agreements and understandings related to its subject matter.

11. Signatures

Disclosing Party:
AfriNuts Export
By: Sa'eed Ralsan Sangare
Name: HAKIM PETERS, SEKOU
Title: Co-Funder & co-CEO – Quality Control Manager
Date: 05/15/25
Receiving Party:

_____
By: _____
Name: _____
Title: _____
Date: _____